

CV-25-012731 ORTEGA, OFELIA vs VASQUEZ, RUBEN - Plaintiff's Motion to Compel Responses to Demand for Production and Request for Order Awarding Monetary Sanctions Against Defendant Ruben Vasquez in The Sum of \$1560.00 – GRANTED in part and DENIED in part, and unopposed.

County: stanislaus

Division: Civil Law and Motion

Department: 22

Hearing date: 2012-04-02

Motion: On July 2, 2026, Plaintiff filed a motion to compel responses to requests for production and for monetary sanctions in the amount of \$1560.00. "If a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it . . . [t]he party making the demand may move for an order compelling response to the demand." (Code Civ. Proc., § 2031.300.) "[T]he court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) . . . unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300(c).) On April 24, 2026, Plaintiff served 11 requests for production of documents on Defendant, to which Defendant did not respond. On July 28, 2026, Defendant filed a motion for protective order to prohibit Plaintiff from propounding further discovery and to relieve Defendant from responding to Plaintiff's discovery requests, but there is no opposition on file. Defendant states that he is in the process of securing an attorney. Pursuant to Code of Civil Procedure section 2031.300, the unopposed motion to compel is GRANTED. Defendant shall serve responses within 30 days. The Court declines to issue sanctions in this circumstance. The request for sanctions is DENIED. Moving party to submit a proposed order within five court days that conforms with this ruling. The following are the tentative rulings for cases calendared before Judge Clifford Tong in Department 23:

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